

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 201909596	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/25/2019 12:30 PM	Location of Incident: Bay Ridge Avenue and 5th Avenue	18 Mo. SOL 12/10/2021	Precinct: 68		
Date/Time CV Reported Fri, 10/25/2019 4:41 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/04/2019 11:05 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Smith	04481	935767	068 PCT
2. POF Stephani Santiago	23732	963263	068 PCT
3. POM David Giza	06971	958638	068 PCT
4. SGT Joseph Corrado	02815	953780	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Thomas Smith	Abuse: Police Officer Thomas Smith threatened to arrest § 87(2)(b)	A . Substantiated
B . POM Thomas Smith	Abuse: Police Officer Thomas Smith stopped § 87(2)(b)	B . Substantiated
C . POM Thomas Smith	Discourtesy: Police Officer Thomas Smith acted discourteously toward § 87(2)(b)	C . Unsubstantiated
D . POM Thomas Smith	Force: Police Officer Thomas Smith used physical force against § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 4th, 2019, the CCRB received log # 2019-39280 from the Internal Affairs Bureau Command Center, which included the following complaint on behalf of § 87(2)(b) [BR 01].

On October 25th, 2019, § 87(2)(b) accused § 87(2)(b) of stealing three hundred dollars from an ATM machine he had been using at a Bank of America in Bay Ridge, Brooklyn. § 87(2)(b) called 911, and Police Officers Stephani Santiago and David Giza of the 68th Precinct responded. PO Giza and PO Santiago determined that § 87(2)(b) did not actually see § 87(2)(b) steal his money, that there were no witnesses to the crime, and that surveillance footage from the bank could not be accessed. Police Officer Thomas Smith and Sergeant Joseph Corrado of the 68th Precinct then responded to the bank. PO Smith threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority – Threat of Arrest, substantiated**) and stopped § 87(2)(b) from leaving the bank (**Allegation B: Abuse of Authority – Stop, substantiated**). PO Smith placed his hand on § 87(2)(b)'s shoulder and, allegedly, repeatedly tapped § 87(2)(b)'s shoulder (**Allegation C: Discourtesy – Action, unsubstantiated**), and at some point allegedly pushed § 87(2)(b) into a chair (**Allegation D: Force, unsubstantiated**).

§ 87(4-b) § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Thomas Smith threatened to arrest

§ 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Thomas Smith stopped § 87(2)(b) .

Allegation C – Discourtesy: Police Officer Thomas Smith acted discourteously toward

§ 87(2)(b)

Allegation D – Force: Police Officer Thomas Smith used physical force against § 87(2)(b) .

§ 87(2)(b) was interviewed at the CCRB on November 13th, 2019 [BR 02]. She stated that on October 25th, 2019, a man accused her of stealing money he had withdrawn from an ATM at the Bank of America at 6901 5th Avenue in Brooklyn. Multiple officers responded to the bank, and interviewed § 87(2)(b) in the ATM vestibule area as § 87(2)(b) remained inside of the bank and called her own bank, Chase Bank. § 87(2)(b) believes that an officer came inside of the bank at some point, and stood by as a representative from her bank confirmed, over speakerphone, that § 87(2)(b) had made a recent withdrawal from her own bank account.

A few minutes later, PO Smith approached § 87(2)(b) inside of the bank. § 87(2)(b) asked PO Smith to speak to a Chase Bank representative over the phone, but PO Smith refused, and told § 87(2)(b) that he would arrest her if she did not return the money she had stolen. PO Smith approached within inches of § 87(2)(b)'s face, and told § 87(2)(b) that he recognized her as the perpetrator of a past crime at "95th and 4th," and that he possessed video footage of her committing the past crime.

At this point, § 87(2)(b) wanted to return to the store she owns, and stated "let me go back to my store." PO Smith put his hand on § 87(2)(b)'s shoulder and told § 87(2)(b) that she could not go to her store. PO Smith repeatedly patted § 87(2)(b)'s shoulder. § 87(2)(b) asked PO Smith not to touch her, and PO Smith stated "I want you to ask me not to touch you so that I can keep touching you," or something to that effect. At some point, PO Smith pushed or propelled § 87(2)(b) toward a chair on which she had been sitting, and had stood up from.

Sgt. Corrado told § 87(2)(b) that PO Smith might have mistaken her for someone else. § 87(2)(b) then had a Chase Bank representative confirm for Sgt. Corrado that § 87(2)(b) had withdrawn her own funds. Sgt. Corrado took § 87(2)(b)'s information and asked if she had any criminal history, before taking § 87(2)(b)'s ID and returning to his car. Sgt. Corrado then reentered the bank and authorized § 87(2)(b) to leave and return to her store.

Police Officer Stephani Santiago was interviewed at the CCRB on January 31st, 2020 [BR 03]. She stated that she and Police Officer David Giza interviewed § 87(2)(b) when they first arrived to the scene of the incident. § 87(2)(b) stated that he had run out of the bank after making a withdrawal from an ATM, and that, when he came back, his money was missing; he had not actually seen § 87(2)(b) take his money, but suspected her because she was the only other person in the ATM vestibule area. PO Santiago then learned from speaking with a bank employee that surveillance footage could only be accessed on a later date, through a third-party security company. There were no witnesses on scene, and no evidence that § 87(2)(b) had taken § 87(2)(b)'s money; thus, there was no probable cause to arrest § 87(2)(b).

§ 87(2)(b) called her bank, Chase Bank, and had a representative confirm over speakerphone that § 87(2)(b) had withdrawn three hundred dollars – the exact same amount that § 87(2)(b) had accused § 87(2)(b) of stealing – from an ATM at the Bank of America at 6901 5th Avenue. PO Santiago did not recall preventing § 87(2)(b) from

leaving the bank, and stated that § 87(2)(b) remained at the bank voluntarily. PO Santiago considered § 87(2)(b) to be free to leave.

PO Santiago and PO Giza requested a supervisor, because supervisors are required to respond to larceny-in-progress jobs. PO Santiago told Sgt. Corrado and PO Smith, when they arrived at the bank, that the bank's surveillance footage could not be accessed on site and that § 87(2)(b)'s bank representative had confirmed § 87(2)(b)'s withdrawal of her own funds.

PO Santiago saw Sgt. Corrado speak to both § 87(2)(b) and § 87(2)(b) but had no knowledge of what Sgt. Corrado spoke to them about. While Sgt. Corrado was speaking to § 87(2)(b) and before he spoke to § 87(2)(b) PO Smith approached § 87(2)(b) and spoke to her for two or three minutes. § 87(2)(b) was sitting and PO Smith was standing as they spoke. PO Santiago did not overhear their conversation. § 87(2)(b) did not seem upset or like she wanted to leave the bank, and did not try to stand up from her chair. PO Santiago did not see PO Smith make any physical contact with § 87(2)(b).

PO Giza was interviewed at the CCRB on January 22nd, 2020 [BR 04]. § 87(2)(g) PO Giza stated that after speaking with § 87(2)(b) and § 87(2)(b) and after § 87(2)(b)'s bank representative confirmed that § 87(2)(b) had withdrawn three hundred dollars, "[he] had nothing" and § 87(2)(b) was free to leave the bank.

PO Giza did not recall whether he related any of the observations he had made, prior to PO Smith and Sgt. Corrado's arrival at the bank, to PO Smith. PO Giza also did not have any recollections regarding PO Smith's involvement in the incident, other than that he was "responding to a normal job."

Video evidence for this case is limited, because PO Smith and Sgt. Corrado did not record the incident on their body-worn cameras, and Police Officer David Giza and Police Officer Stephani Santiago stopped recording before the incident was over. Further, the Bank of America where the incident occurred was unable to fulfill the CCRB's request for surveillance footage.

PO Santiago's body-worn camera [BR 05] shows that after speaking with § 87(2)(b) she and PO Giza entered the Bank of America location, and spoke with the manager, § 87(2)(b) § 87(2)(b) told PO Santiago and PO Giza that the officers would not be able to view the bank's surveillance footage on-site.

Shortly after, § 87(2)(b) explains to PO Santiago that she made a withdrawal using a Chase Bank card, and, minutes later, calls Chase Bank. Between 10:39 minutes and 11:42 minutes, a representative from Chase Bank confirms over speakerphone, while PO Santiago and PO Giza listen, that § 87(2)(b) withdrew three hundred dollars from an ATM in Bay Ridge, Brooklyn, at 12:02 PM, twenty-five minutes prior to the time stamp on PO Santiago's body-worn camera. At 11:46 minutes, Sgt. Corrado enters the bank and asks PO Santiago and PO Giza to step outside of the bank. PO Santiago then turns her body-worn camera off.

PO Giza's body-worn camera [BR 06] shows that at 3:50 minutes he has a cellphone conversation wherein he asks "are you swinging by," and says that security footage cannot be accessed on-site. He also states that there are no witnesses. At 11:40 minutes, Sgt. Corrado and PO Smith arrive at the bank. PO Santiago, PO Smith, Sgt. Corrado, and PO Giza all walk outside of the bank, and PO Giza begins relating the incident, before shutting his body-worn camera off at 11:56 minutes.

PO Smith was interviewed at the CCRB on January 8th, 2019 [BR 07]. When he first arrived at the Bank of America, he spoke with PO Giza and PO Santiago, who related the alleged larceny. PO Giza and PO Santiago also told PO Smith that there no witnesses to the alleged larceny, and that § 87(2)(b) the alleged victim, had not actually seen § 87(2)(b) steal his money. PO Smith believed at this point that "anyone" could have stolen § 87(2)(b)'s money and that there were no reasonable grounds for suspecting § 87(2)(b) of the alleged larceny.

PO Smith then approached § 87(2)(b) and immediately recognized her as the perpetrator of a prior scam at a deli on 95th Street and Bay Ridge Avenue. PO Smith had seen surveillance footage of this scam, and § 87(2)(b) was wearing the same traditional Middle Eastern garb that that perpetrator had been wearing. PO Smith acknowledged during his interview, however, that traditional Middle Eastern garb is very common amongst women in Bay Ridge, Brooklyn.

PO Smith's recognition of § 87(2)(b) as the perpetrator of a past crime led him to suspect that § 87(2)(b) had stolen § 87(2)(b)'s money. However, the only evidence that § 87(2)(b) stole § 87(2)(b)'s money consisted in § 87(2)(b)'s circumstantial accusations. Therefore, probable cause to arrest § 87(2)(b) was "vague" and there was no "concrete" basis on which to make an arrest. § 87(2)(b) was probably not free to leave at this point, though, as other officers were still trying to locate surveillance footage.

PO Smith stated that he probably told § 87(2)(b) that she would be arrested if she did not return the three hundred dollars she had taken, or something to that effect. PO Smith then told § 87(2)(b) to "stay here" while the investigation proceeded. § 87(2)(b) became very upset and "belligerent." PO Smith tapped § 87(2)(b)'s shoulder two or three times, and told § 87(2)(b) "sit down; you're probably going to get arrested." He did this because he wanted to de-escalate rising tensions. § 87(2)(b) never sat down, but was upset by PO Smith's touching her shoulder. PO Smith denied stating anything to the effect of "I want you to tell me not to stop so that I can keep touching you."

PO Smith denied touching § 87(2)(b) at any other time or pushing § 87(2)(b) into a chair. § 87(2)(b) did not attempt to leave the bank at any point during the incident, nor did she indicate that she wanted to leave the bank. Roughly a minute into PO Smith's interaction with § 87(2)(b) PO Smith learned that surveillance footage could not be accessed on-site. At this point, § 87(2)(b) was free to leave.

Sergeant Joseph Corrado was interviewed at the CCRB on February 18th, 2020 [BR 08]. He stated that after arriving to the scene of the incident, he spoke to § 87(2)(b) and learned that the caller had not actually seen § 87(2)(b) steal his money. At this point, he

determined that the job had changed from a larceny-in-progress to a dispute. PO Giza and PO Santiago told Sgt. Corrado that there were no witnesses to the alleged larceny, and that surveillance footage could not be accessed on-site.

PO Smith did not indicate that he recognized § 87(2)(b) from a previous incident, and Sgt. Corrado was not aware of § 87(2)(b) being a suspect in any other alleged crimes.

By the end of the conversation between PO Smith, PO Santiago, PO Giza, and Sgt. Corrado, Sgt. Corrado determined that there was no evidence that § 87(2)(b) had committed the alleged larceny. § 87(2)(b) was free to leave the bank if she wanted to, although officers wanted to speak to § 87(2)(b) to determine whether she had witnessed the alleged larceny. § 87(2)(b) did not seem like she wanted to leave the bank, and remained on the premises voluntarily to speak with officers.

PO Smith spoke to § 87(2)(b) although Sgt. Corrado did not recall whether he had instructed PO Smith to do so. Sgt. Corrado did not recall the interaction between PO Smith and § 87(2)(b).

Section 155.05 of the New York State Penal Law provides that a person commits larceny when, with intent to deprive another of property or to appropriate the same to himself or to a third person, (s)he wrongfully takes, obtains or withholds such property from an owner thereof. New York State Penal Law, § 155.05 **[BR 09]**.

In *People v. DeBour*, the New York Court of Appeals ruled that where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, the officer may forcibly stop and detain that person. Absent such reasonable suspicion, an officer may not forcibly stop or detain a person. *People v. DeBour*, 40 N.Y.2d 210 **[BR 10]**.

Procedure 208-01 of the NYPD Patrol Guide states that a uniformed member of service may make an arrest without a warrant for a crime (within presence or not) when reasonable cause exists that the arrested person committed the crime. NYPD Patrol Guide 208-01 **[BR 11]**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that

Allegations A and B be substantiated.

§ 87(2)(g)

It is therefore recommended that

allegations C and D be unsubstantiated.

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Sergeant Joseph Corrado has been the subject of one prior CCRB complaint, which was mediated.
- Police Officer Thomas Smith has been a member of service for 15 years and has been the subject of 21 allegations, one of which has been substantiated, in 8 prior complaints.
 - Case # 201102151 involved a substantiated allegation of Physical Force. The Board recommended charges and the NYPD did not impose any penalty or disciplinary action.
 - § 87(2)(g)
- Police Officer Stephani Santiago has been a member of service for 3 years, and has been the subject of one CCRB complaint and one allegation, which is currently being investigated.
- Police Officer David Giza has been a member of service for 4 years and has been a subject in one CCRB complaint and two allegations, neither of which was substantiated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint, pending a consultation with a civil attorney.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of March 3rd, 2020, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regards to this complaint **[BR 19]**.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date